



**Bureau of Experts at the Council of Ministers  
Official Translation Department**

**Law on Implementation of the Saudi Building Code**

Royal Decree No. M/43  
January 24, 2017

**Translation of Saudi Laws**

**NOTES:**

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
  - Words used in the singular form include the plural and vice versa.
  - Words used in the masculine form include the feminine.
  - Words used in the present tense include the present as well as the future.
  - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

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## Law on Implementation of the Saudi Building Code

### Article 1

In this Law, the following terms shall have the meanings assigned thereto, unless the context requires otherwise:

**Ministry:** The Ministry of Municipal and Rural Affairs.

**Municipality:** Municipality or sub-municipality.

**National Committee:** The National Committee of the Saudi Building Code.

**Code:** The Saudi Building Code: a set of conditions and requirements including its implementing regulations and annexes relating to building and construction, to ensure public health and safety.

**Law:** The Law on Implementation of the Saudi Building Code.

**Regulations:** The Implementing Regulations of the Law.

**Construction/Building:** Any structure built and prepared for occupancy and use, and is classified in the Code.

**Designer:** A licensed natural or legal person assigned by the owner to carry out studies and designs according to his needs and Code requirements.

**Builder (Contractor):** A licensed natural or legal person assigned by the owner to execute construction works, installation, operation, or maintenance in accordance with the Code.

**Supervisor:** A licensed natural or legal person assigned by the owner to perform supervisory work.

**Building License:** A building permit issued by the Municipality.

**Certificate of Occupancy:** A permit to occupy the building issued by the municipality upon ensuring its compliance with the Code.

**Practice License:** A permit issued by a competent agency to individuals, organizations, establishments and corporations to conduct studies and designs, execution, or supervision, in accordance with the Code.

**Relevant Agencies:** Government agencies entrusted with monitoring the implementation of the Code, which are: The Ministry of Municipal and Rural Affairs, the Ministry of Interior (General Directorate of Civil Defense), the Ministry of Energy, Industry, and Mineral Resources.

**Violation:** Any violation to the Code, intentional or otherwise.

**Serious Violation:** Any violation to the Code that endangers life or property.

### Article 2

1. The Code shall apply to all construction works in the public and private sectors, including the works of design, construction, operation, maintenance, and modification of a building. It shall also apply to existing buildings in case of restoration, change of use, expansion or modification.
2. The Code shall be gradually applied as determined by the Regulations within a period not exceeding five years from the date of the Law's entry into force.
3. No code, other than the Saudi Code, shall be applied after the gradual application of the Law as stipulated in paragraph 2 of this Article.



### **Article 3**

Without prejudice to the right of other relevant agencies to exercise their powers in accordance with their laws, the Ministry shall monitor the implementation of the Code.

### **Article 4**

The National Committee shall be in charge of the following:

1. Review comments on the Code and propose necessary amendments, in coordination with the competent agencies. Such amendments shall be issued pursuant to a decision by the Minister of Commerce and Investment, Chairman of the Board of Directors of the Saudi Standards, Metrology and Quality Organization.
2. Draft the scientific and technical instructions and illustrations relating to the Code, participate with the competent agencies in preparing training and qualification materials and plans, and hold workshops, symposia and conferences relating to the Code.
3. Represent the Kingdom at relevant regional and international technical organizations and committees, upon coordination with the competent agencies.

### **Article 5**

The Code shall be updated and reissued every five years pursuant to a decision by the Minister of Commerce and Investment, Chairman of the Board of Directors of the Saudi Standards, Metrology and Quality Organization.

### **Article 6**

After the gradual application of the Law, as stipulated in Article 2(2) of the Law, compliance with the Code shall be a requirement for obtaining a permit for construction, restoration, modification, or change of use.

### **Article 7**

Design, supervision, and execution of works shall be in accordance with contracts concluded with licensed specialists.

### **Article 8**

Designers, supervisors, and contractors shall carry out assigned tasks in accordance with the Code.

### **Article 9**

A building may not be occupied without a certificate of occupancy as classified in the Code, and in accordance with the procedures and terms provided for in the Regulations. The certificate of occupancy shall be a prerequisite to providing municipal services.



## **Article 10**

Any person violating the Code shall, upon notification, remove or rectify the violation in accordance with the Code within a period set by the relevant agency.

If the violator fails to remove or rectify the violation within the specified period, the relevant agency shall refer the matter to the committee stipulated in Article 14 of the Law as determined by the Regulations.

## **Article 11**

In case of a serious violation, the relevant agency shall notify the violator of the same, stop construction of the building or the part thereof that poses danger, prohibit occupancy or evacuate said building until the violator removes the violation or rectifies it in conformity with the Code, and refer the matter to the committee stipulated in Article 14 of the Law within a period not exceeding five working days from the date of recording the violation.

## **Article 12**

Without prejudice to the provisions of Articles 10 and 11 of the Law, any person violating the Code or any provision of the Law or its Regulations shall be subject to either of the following penalties or both:

1. A fine not exceeding one million riyals per violation per building.
2. Suspend the practice license for a minimum period of one month and a maximum period of one year.

## **Article 13**

Detection and recording of violations of the Code shall be carried out by Code specialists from relevant agencies, appointed pursuant to a decision issued by their respective agencies, provided that the violation details are recorded in minutes in accordance with the Regulations.

## **Article 14**

1. A committee (or more) of specialists from relevant agencies shall, pursuant to a decision by the Minister of Municipal and Rural Affairs, be formed in each province in the Kingdom of at least three members, one of whom shall hold a degree in Sharia or law. Committee work rules and procedures, as well as remuneration of its members, shall be specified pursuant to a decision by the Minister of Municipal and Rural Affairs.
2. The committee shall review violations and impose the penalties stipulated in Article 12 of the Law. Committee decisions may be challenged before the Board of Grievances in accordance with its Law.

## **Article 15**

The National Committee shall, within a year from the publication date of the Law, draft the regulations, including the regulations classifying Code violations, to be approved pursuant to a decision by the Minister of Commerce and Investment, Chairman of the Board of Directors of the Saudi Standards, Metrology and Quality Organization, and published in the Official Gazette.



## **Article 16**

This Law shall enter into force one year after its date of publication in the Official Gazette and shall repeal all conflicting provisions.



## Appendix

### Amendments

#### September 18, 2019 (Muharram 19, 1441H)

Royal Decree No. M/15 provides for the following:

- Adding the "the Saudi Standards, Metrology, and Quality Organization" to the definition of "Relevant Agencies" stated in Article 1.
- Adding a new paragraph to Article 8 to be numbered (2) and to read as follows:
  - "1. Designers, supervisors, and contractors shall carry out assigned tasks in accordance with the Code.
  2. The designer supervising the construction and the contractor shall, for a specified period, be jointly liable to compensate the owner for full or partial collapse of the constructed building, and for any defects undermining the integrity of the building; the Regulations shall determine the relevant provisions".
- Deleting the phrase "The certificate of occupancy shall be a prerequisite to providing municipal services" stated at the end of Article 9 to read as follows:

"A building may not be occupied without a certificate of occupancy as classified in the Code, and in accordance with the procedures and terms provided for in the Regulations".

#### October 13, 2024 (Rabi' II 10, 1446H)

Royal Decree No. M/88 provides for the following:

- Amending Article 9 by adding the phrase "The certificate of occupancy shall be a prerequisite for fully supplying the building with electricity" to the end of it to read as follows:

"A building may not be occupied without a certificate of occupancy as classified in the Code, and in accordance with the procedures and terms provided for in the Regulations. The certificate of occupancy shall be a prerequisite for fully supplying the building with electricity".

#### March 4, 2025 (Ramadan 4, 1446H)

Council of Ministers Resolution No. 656 provides for the following:

- Amending the definition of "National Committee" stated in Article 1 to read as follows:

"**Center:** The Saudi Building Code Center."
- Amending Article 4 to read as follows:

"Amendments to the Code shall be issued pursuant to a decision by the Minister of Municipalities and Housing".
- Replacing the phrase "Minister of Commerce, Chairman of the Board of Directors of the Saudi Standards, Metrology, and Quality Organization" stated in Article 5 with the phrase "Minister of Municipalities and Housing".



- Replacing the phrase "The National Committee" and the phrase "Minister of Commerce, Chairman of the Board of Directors of the Saudi Standards, Metrology and Quality Organization" mentioned in Article 15 with the phrase "The Center" and the phrase "Minister of Municipalities and Housing", respectively.